KELLY O. TURNURE

Hon. Kathie M. Davidson
Westchester County Family Court (Room 305)
111 Martin Luthor King Blvd
White Plains, NY 10601

March 23, 2021

Re: the Matter of Walsh v. Russell (Docket# 154703)

Dear Hon. Judge Davidson:

This letter should both be seen as a plea by someone who loves Steve Russell and an outline of a bizarre legal situation that can only be shared by someone familiar with the breadth and depth of its circumstances. My name is Kelly Turnure and I have been Steve Russell's partner for nearly three years. My background is in finance and investing, but I am now also writing a book and screenplay based on the facts of his case. In addition to being present for most of the underlying events and testimony I have read through every court document, email, piece of evidence on this subject. It is time for clear and decisive action to be taken before more become complicit in one of the most egregious miscarriages of justice I have ever seen or heard.

Here are the facts: After a diagnosis of Borderline Personality Disorder and fear of criminal consequences, Ms. Walsh abandoned their daughter and fled to the airport. She was stopped by friends and family and after consultation was on her way to six weeks of residential care. An emergency order granted Steve Russell, E.V.'s father, custody and Ms. Walsh supervised visitation. A hearing that would have almost certainly granted Steve full custody of his daughter was scheduled for October 2018.

A permanent order of protection was eventually granted against Ms. Walsh after a long form hearing with testimony and cross examination in San Francisco. Prior to the SF custody hearing, Ms. Walsh learned that if she claimed her life was in danger she could break the California court order and flee the state. Despite the fact that Ms. Walsh herself later admitted that these were lies and signed a letter to the Chappaqua Police Department stating so, there has been no recognition of this fact by the Westchester Court where Hon. Gordon-Oliver asserted jurisdiction. Even worse, there has been no hearing in over 2.5 years while Ms. Walsh and her daughter have been confined to her parent's estate in Chappaqua.

Public copy: the child's legal name is shown as E.V.; personal email addresses are removed. Otherwise unchanged.

These simple facts are ultimately lost in the self-serving back-and-forth that culminated in one of the most bizarre rulings I could ever imagine: Ms. Walsh was granted full custody; released from the order limiting her to live at her parent's estate for Evie's safety; and a five year permanent order of protection was granted AGAINST Steve. No judicial notice was taken of Steve's permanent order of protection granted in San Francisco after an actual hearing with essentially the same facts. All of this was done on 'default' during a visitation conference where Steve was represented by counsel and available by phone.

After no hearing in two years, Steve had requested to appear by phone for this visitation conference because I would be recovering from a medical procedure under anesthesia and COVID-19 was starting to hit Westchester. Shortly after Steve's good judgement became NY State policy and all matters proceeded by phone there he was knowingly noticed at 5:30pm the night before court that he would be required to appear - just after the point it would be even possible to fly in from CA. No request was made for documents relating to my procedure and the reason we could not present.

What predicated this abrupt decision?

With such simple facts it is hard to tell whether it was the fragility and poor judgement that comes with being in the bottom half-of-one-perscent of all NY Judges (according to the Robing Room,) or direct retaliation for Steve becoming a registered whistleblower. Steve exposed Westchester Court to tremendous liability after revealing 'fake Dr.' Griffin to be a fraud. 'Mr..' Raymond Griffin is not a doctor, nor Ph.D in Psychology, despite his claims to the contrary. He has been de-licensed and fled the state. Yet he served as 'the guy' for drug and alcohol forensic examinations in Westchester County for over two decades. Despite an appeal and a Rule 78, no facts regarding this matter - or even the docket in this case has been shared. No reasons for two judges recusals were ever given, but a PR Representative for the court stated in LoHud that attorneys were not notifying Griffin's victims out of fear of 'angering the judges.'

Since that default decision in February of last year by Hon. Morales-Horowitz, there has been no substantive engagement on his case. Instead, Hon. Humphrey has instead focused on a billing dispute with Faith Miller's firm, and provided Ms. Walsh with not one but TWO free attorneys. Ms. Walsh recently made close to $250k/year and currently lives without expenses under the protection of her family at their Chappaqua estate. Steve on the other hand, was denied the basic protections granted to nearly every victim when his permanent order of protection expired in San Francisco. It had been two years and no one imagined that a hearing would still be pending in New York.

Ms. Walsh had and her attorney had let her TOP go un-renewed nearly a year before Hon. Morales-Horowitz ruling when Ms. Walsh's parents and sole witnesses refused then to testify on her behalf. No new hearing was scheduled. And two court officials have offered sworn statements against Ms. Walsh. Even SHE has since recanted the events premised in her TOP at this point.

One of the supervisors, specifically chosen by Hon. Gordon-Oliver, made a particularly strong statement about the Walsh's behavior, calling it 'the worst of her career," and that it caused her, 'the worst sheer fright of her life.' She has since faced retaliation for her honesty. As has Steve's attorney, Max DiFabio. Two judges recused themselves not just from Steve's cases - but from ALL of his cases. We expect the same of Judge Humphrey. Beyond that, each bright-eyed clerk who has promised to get Mr. DiFabio the docket 'by the end of the day' goes silent and disappears after learning the case.

Meanwhile, Ms. Walsh has capitalized on the ruling to deny her daughter a father and attempt his arrest on every possible occasion. Frankly, he is the best possible father a girl could ask for. As I stated, it's difficult to tell whether the Court's actions are out defensiveness, incompetence or retaliation, but two weeks ago I had an opportunity to witness an interaction between Hon. Humphrey and Steve. The Judge refused to make eye contact. His voice and body language were that of someone who knew what he was doing something wrong, even shameful.

Sincerely yours,

Kelly O. Turnure

CC: NY Committee on Judicial Affairs, Hon. Gordon-Oliver, Hon. Morales-Horowitz, Hon. Humphreys, Max DiFabio, Christopher Weddel, & Faith Miller by certified mail

Attachments: 1) Photos of Steve and Evie across five supervisors. 2) Specific testimony and sworn admission of crimes by Ms. Walsh 3) Letter to Chappaqua Police recanting statements. 4) SF Permanent Order against Ms. Walsh. 5) SF Dismissal w/ Predjudice of all Ms. Walsh Claims. 6) Various transcripts and emails with Westchester Court officials.